Ironically, under this structure of government in decolonised societies, the judiciary in particular has gradually come to occupy a similar position as the Roman Catholic Church, wielding the same impervious authority while dispensing Protestant and Enlightenment values on both secular and religious matters. In that sense, instead of decentralising morality and allowing the society's indigenous cultural moorings to inform law and policy, blind and unthinking constitutionalism has effectively contributed to the concentration of totalising powers over morality and worldview in the hands of unelected institutions and individuals. While the monasticised Roman Catholic Church served the true God, the true religion and Christ, and advanced the process of conversion towards reformation of man in the image of God, modern day constitutional institutions serve colonial constitutionalism and advance the cause of reformation of the native society in the image of the European civilisation, perhaps under the belief that the native society's salvation lies in Westernisation.

This process of constitutional conversion of the indigenous society takes the shape of 'transformative constitutionalism' or 'progressive constitutionalism', both of which suffer from varying degrees of coloniality. One is alive to the fact that transformative constitutionalism may land differently in different jurisdictions depending on their respective histories and socio-economic conditions. For instance, in South Africa, transformative constitutionalism represents the transition from an apartheid State to a democratic society, which has even facilitated decolonialisation, and hence Africanisation of legal education.[40] In contrast, in countries like Bharat, transformative constitutionalism has led to the severing of ties between the civilisational ethos of Bharat and the evolution of constitutional jurisprudence. This is attributable to the fundamental differences in historical premise and end goals that inform such transformative constitutionalism. If the premise is rooted in colonialised versions of indigenous history, it is but natural that transformative constitutionalism constantly sees the need to reform the native out of his/her identity. On the contrary, if the historical premise is the recognition of deep-seated coloniality in every aspect of the society, which is sought to be addressed, transformative constitutionalism could lead to shifting the locus of onto-epistemology and consciousness from the West to the indigenous society.